

ISMUN 4.0

BACKGROUND GUIDE



UNITED NATIONS HUMAN RIGHTS

COUNCIL

AGENDA: *Investigating Systemic Human Rights Violations in Secret Detention Facilities, Externalized Border Enclaves, and Unofficial Custodial Sites*

TABLE OF CONTENTS

1) LETTER FROM THE EXECUTIVE BOARD.....	3
2) INTRODUCTION TO THE COMMITTEE.....	4
3) MANDATE OF THE COMMITTEE.....	5
4) INTRODUCTION TO THE AGENDA.....	6
5) BACKGROUND TO THE AGENDA.....	8
6) TIMELINE OF MAJOR EVENTS.....	10
7) STATUS QUO.....	12
8) KEY CONCEPTS AND STAKEHOLDERS.....	14
9) TREATIES AND RESOLUTIONS.....	15
10) CASE STUDIES.....	16
11) QARMA.....	18
12) BIBLIOGRAPHY	20
13) FURTHER READINGS.....	21

LETTER FROM THE EXECUTIVE BOARD

Distinguished Delegates,

Welcome to the United Nations Human Rights Council (UNHRC) at ISMUN 4.0. We are honoured to be your Executive Board for this committee, and we hope this experience helps you grow as a speaker, a writer, and a thinker.

This year, our committee is taking on a tough and important topic that is secret detention centers, externalized borders, and unofficial holding sites. We're asking you, as delegates, to look at this issue seriously, not just point fingers at one country or group. Instead, focus on the big picture. Ask why these places keep existing, think about the legal gray areas, loopholes, weak oversight, confusing lines of authority, and how responsibility gets spread between governments and other actors. That's how we'll really get somewhere. We expect you to arrive prepared with a firm grasp of your assigned State's policy, its legal obligations, and its historical conduct, and to use this preparation in service of solutions that are actionable, enforceable, and respectful of legitimate security concerns without compromising fundamental human dignity.

The Executive Board is eagerly anticipating well-informed, diplomatic, and solution-oriented conversations during the event. We urge every delegate to come to the committee equipped with sharp analytical skills, high-level professionalism, and brimming with creativity. This is also an opportunity to learn and forge relationships that you shall cherish for a long time. Should you have any questions regarding the agenda, the committee's procedure, or your preparation more generally, please do not hesitate to reach out to us. So, let us have stimulating discussions, and at the same time, we wish everyone success at the conference.

Kindest Regards,

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INTRODUCTION TO THE COMMITTEE

The United Nations Human Rights Council (UNHRC) sits right at the heart of the UN's push to defend human rights everywhere. It started in March 2006, when the General Assembly passed resolution 60/251, stepping in for the old Commission on Human Rights. Now, the Council answers straight to the General Assembly.

There are 47 Member States on the Council. The General Assembly picks them with a direct and secret ballot, making sure every region gets fair representation. Each country stays on the Council for three years. Most of the Council's work plays out in a few main ways. You have the Universal Periodic Review, which takes a hard look at every UN country's human rights record. There are the Special Procedures which are basically, independent experts or groups who dig into specific themes or countries and report back. In situations serious to human rights concerns, the Council may establish Commissions of Inquiry or Fact-Finding Missions to investigate alleged violations and report their findings.

Even though UNHRC resolutions don't have the same legal bite as Security Council decisions made under Chapter VII of the UN Charter, don't let that fool you. These resolutions carry serious political and moral weight. They influence global debates, create mandates for investigations, and often lay the groundwork for future steps by the UN, regional groups, or even national courts. So, when you're drafting a resolution, focus on ideas that are bold but realistic. Push for new investigations, monitoring mechanisms, ways to strengthen local capacity, or efforts to clarify international law but avoid enforcement actions the Council just can't back up. Accordingly, delegates should focus on legally grounded and practical measures within the Council's mandate .

MANDATE OF THE COMMITTEE

Core Areas of Work -The ‘mandate’ of a committee is simply what it is allowed to do, its powers and its limits. The UNHRC’s core areas of work therefore centre around reviewing, investigating, monitoring, and making recommendations on human rights situations.

Agenda Scope- The UNHRC leans heavily on something called the Universal Periodic Review. Basically, every four and a half years, every UN member has its human rights record put under the microscope. The Council checks what’s going on, then offers advice and suggestions to that country. On top of that, they can bring in independent experts, Special Procedures, they call them, to dig into a particular issue, say torture or enforced disappearance or even focus on just one country. These experts look around, gather facts, and then report what they find, proposing what should happen next.

The UNHRC doesn’t set laws, and it can’t force countries to make changes. Unlike the Security Council, UNHRC does not possess comparable enforcement powers. The Council’s resolutions are not legally binding like Security Council Chapter VII decisions, but they carry significant political and normative weight.. Thus, Much of the Council’s work therefore involves reviewing human rights situations, conducting investigations, monitoring developments, issuing reports, and making recommendations to States and other relevant actors.

Functions- When a situation is very serious, the Council can set up a Commission of Inquiry or a fact-finding mission to investigate in detail and publish a report, which can later be used by courts, UN bodies, or the media. The Council draws its influence from its ability to investigate, create public pressure, and establish standards that guide both nations and other organizations. Unlike the Security Council, the Human Rights Council does not possess comparable enforcement powers. With this in mind, delegates should aim to draft resolutions that reflect the Council’s actual role such as launching investigations, creating monitoring systems, recommending legal reforms, or urging greater transparency. It’s important to focus on these areas rather than push for enforcement measures that go beyond what the Council is empowered to do.

INTRODUCTION TO THE AGENDA

The agenda put forth by the council addresses three interconnected phenomena that collectively erode the global rule of law and international human rights governance: Secret Detention Facilities, Externalized Border Enclaves, and Unofficial Custodial Sites.

1. Secret Detention Facilities (Black Sites): Secret detention means authorities keep people in hidden places and refuse to say where they are or even who they have. Such detention operates outside ordinary judicial safeguards and may involve the denial of access to courts, legal counsel, family members, and independent oversight. People locked away this way lose all contact with lawyers and family and they don't get a chance to fight their detention in court. International law actually calls secret detention a form of enforced disappearance. And it's more than just a rights violation hidden away like this, people are at serious risk of torture or other abuse, with no one watching and no one held accountable.

2. Externalized Border Enclaves: Border externalization means countries set up policies outside their own borders to keep asylum seekers, refugees and migrants from ever reaching them. They do things like build offshore processing centers, stop people at sea, use detention camps in third countries and sign deals to hand off migration control to other governments. Externalization can stop asylum seekers and migrants from reaching a country, while raising questions about whether that country's human rights and refugee obligations still apply outside its territory, set out by the 1951 Refugee Convention. In particular, they aim to sidestep the rule that forbids sending anyone back to a country where they risk torture or serious harm.

3. Unofficial Custodial Sites: Unofficial custodial sites are basically hidden places where people are detained outside regular, designated facilities. Think of the basement of a police station, a back room in a

military barracks, a private security hangar, even certain transit hubs. Sometimes these are run by proxy militias or private military contractors, not official government forces. The problem is people held in these spots don't show up in official records. No paperwork, no real oversight. That means international monitoring groups can't easily check on who's inside or what's happening to them.

The Imperative for Global Attention: These tactics are part of a legal playbook called 'jurisdictional arbitrage'. Basically, countries use distance, loopholes in treaties, national security excuses, and clever contracts to dodge responsibility and end up creating legal dead zones. The human cost is devastating, it is prolonged arbitrary detention, systemic physical and psychological torture, enforced disappearances, severe medical neglect, and the complete collapse of institutional accountability.

BACKGROUND TO THE AGENDA

Historical Evolution of Shadow Custody: The emergence of clandestine detention and externalized border control is rooted in historical practices of state repression, counter-insurgency operations, and evolving migration containment strategies over the past half-century.

During the Cold War, governments across Latin America and their proxy networks carried out enforced disappearances and hidden detentions on a massive scale. Operation Condor in the 1970s stands out the military dictatorships built secret torture centers where people vanished, tucked away from courts and aid groups that might ask questions.

The Post-9/11 Era and Extraordinary Rendition: Then came 9/11, and everything shifted. The United States, using classified orders, set up a secret network of detention sites across the world places like Afghanistan, Thailand, Poland, Romania, Lithuania, and Morocco. With this system, the CIA grabbed suspects in one country, shipped them off to another, and locked them up in these black sites. No warrants, no proper extradition, just out of sight and outside the law. They called it extraordinary rendition, but it really meant that detainees disappeared into this hidden system, facing ‘enhanced interrogation techniques’. Detainees were held without legal recognition or proper court protection, making it difficult to seek justice or independent oversight.

Evolution of Border Externalization: Back in the late 1990s, countries like Australia, the United States, and several in Western Europe started changing the way they dealt with migrants. They weren’t just worrying about their own borders anymore. Instead they pushed their migration controls outward trying to stop people before they even got close. Australia jumped in early with its Pacific Solution in 2001, sending

asylum seekers who made it by boat off to Nauru and Manus Island that are places which aren't even part of Australia. Around the same time, Europe took a different route after the Schengen zone grew. European governments struck deals with countries like Libya, Tunisia, and Morocco, asking them to intercept migrants and keep them from reaching European soil at all.

Structural Drivers of Shadow Custody:

- National Security Secrecy Doctrines- Governments often use secrecy laws, national security claims, and special exemptions to keep courts from digging too deep. They hold back flight records and shut out inspectors who want access to detention centers.
 - Jurisdictional Ambiguity & Extraterritoriality- When they set up these sites in foreign countries, on ships, or in other off-the-grid places, officials argue that their own laws and international treaties just don't reach that far.
 - Commercialization and Privatization- The proliferation of private security corporations and non-State subcontractors in managing detention facilities creates fragmented liability, obscuring state responsibility under international law.
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TIMELINE OF MAJOR EVENTS

Adoption of UNCAT (1984) : The UN General Assembly adopts the Convention Against Torture, establishing the prohibition of torture and the Article 3 non-refoulement principle.

Extraordinary Rendition & Pacific Solution (2001) : Following 9/11, the CIA's clandestine black-site network is established, while Australia introduces offshore refugee processing on Nauru and Manus Island.

Adoption of OPCAT (2002) : The Optional Protocol to UNCAT establishes National Preventive Mechanisms (NPMs) and allows unannounced inspections of detention facilities by the Subcommittee on Prevention of Torture (SPT).

ICPPED & Creation of UNHRC (2006) : The International Convention for the Protection of All Persons from Enforced Disappearance is adopted, while the UNHRC is established through Resolution 60/251. The U.S. publicly acknowledges the CIA black-site programme.

UN Joint Study on Secret Detention (2010) : A landmark UN study confirms that secret detention constitutes an internationally wrongful act violating international human rights law and customary international law.

ECHR: *El-Masri v. Macedonia* (2012) : The European Court of Human Rights holds North Macedonia responsible for torture and secret detention linked to the CIA extraordinary rendition programme.

U.S. Senate CIA Report & ECHR Poland Judgments (2014) : The U.S. Senate publishes a redacted report detailing CIA black-site torture, while the ECHR finds Poland complicit in hosting secret CIA detention facilities.

EU-Turkey Statement & PNG Supreme Court Ruling (2016) : The EU expands migration externalization through Turkey, while Papua New Guinea's Supreme Court rules Australia's Manus Island detention facility unconstitutional and illegal.

EU-Libya Memorandum & Formal Manus Closure (2017–2020) : Italy and the EU support the Libyan Coast Guard in intercepting migrants at sea and

returning them to detention centres in Libya. The Manus Regional Processing Centre is formally closed.

Modern Externalization Frameworks & Legal Challenges (2023–2026) : Third-country migration processing arrangements expand, including the Italy-Albania protocol and UK-Rwanda policy, alongside increased legal challenges and UN scrutiny of detention and transit facilities.

STATUS QUO

Institutionalized Externalization: Several destination States use funding, maritime cooperation, and agreements to make transit countries handle migration control for them. They sign deals and set up migration partnerships so migrants and asylum seekers get stopped before they reach a place where they can ask for protection. The real job of keeping borders tight ends up falling on countries that often have weaker courts and less oversight. That sparks serious worries about who's really responsible if things go wrong like forcing people back into danger or blocking their chances of getting real legal help.

Militia Control in Conflict Zones: In places like Libya and parts of the Sahel, it's tough to tell where the state ends and armed groups begin. People, especially migrants, find themselves passed back and forth between government centers and groups with guns and leaving everyone confused about who's actually responsible for them. Because there's no clear authority, you see all kinds of abuses such as extortion, forced labor, trafficking, sexual violence and torture. Nobody really knows who's in charge and when there's no real oversight or way to hold people accountable, the cycle just keeps going.

Digital Tracklessness: In today's world, facial recognition, biometric databases, phone surveillance, geolocation, and automated border checks make it easier than ever to track people. The problem is that when authorities gather biometric or location data without clear rules, most folks have no idea who's looking at their information, what it's used for, or where it could end up. In places where detention and border control are managed by multiple governments or private companies, digital records are often fragmented across various databases. You end up with this strange situation, there is plenty of surveillance, but nobody can pin down who's responsible for actually locking someone up or moving them around. It's a new kind of hidden custody, where technology keeps watch, but the trail of accountability disappears.

Obstruction of UN Oversight: International monitoring groups like the Working Group on Arbitrary Detention (WGAD), the Special Rapporteur on Torture, and the Subcommittee on Prevention of Torture (SPT) may face restrictions when seeking access to military facilities, border zones, offshore

detention centres, or other places of deprivation of liberty. Governments usually claim national security, military secrecy, immigration concerns, or territorial rights to shut the door on outside investigators. Without access, these groups can't really verify conditions or spot ongoing abuse. If monitors aren't allowed into detention sites or can't talk privately with detainees, holding anyone accountable becomes basically impossible.

KEY CONCEPTS AND STAKEHOLDERS

Legal Concepts:

- Habeas Corpus- Legal procedure ensuring detainees can challenge the lawfulness of their detention in court.
- Principle of Non-Refoulement- Absolute prohibition against returning individuals to territories where they face torture or severe harm (UNCAT Art. 3, Refugee Convention Art. 33).
- Enforced Disappearance- Denial of Freedom by state agents followed by refusal to acknowledge custody or location.
- Extraordinary Rendition- Extrajudicial cross-border abduction and transfer outside standard legal channels.
- Extraterritorial Jurisdiction / Effective Control- Principle that human rights obligations extend to any location where a state exercises physical control over persons or facilities.
- Proxy Custody- Outsourcing detention to foreign security forces, non-state militias, or private security firms to avoid direct legal responsibility.

Key Stakeholders:

- Destination/Western States: Implement border externalization and counter-terrorism rendition frameworks, citing national security and territorial sovereignty.
- Transit & Host/Proxy States: House offshore centers or secret sites in exchange for financial assistance and diplomatic backing, bearing the physical burden of violations.
- UN Bodies & Treaty Bodies: OHCHR, UNHRC, Committee Against Torture (CAT), Subcommittee on Prevention of Torture (SPT), WGAD, and WGEID.
- Humanitarian & Non-State Actors: ICRC, UNHCR, IOM, alongside civil society organizations- Amnesty International and Human Rights Watch.

TREATIES AND RESOLUTIONS

The international legal architecture governing detention, border control, and protection against arbitrary state power comprises the following key treaties and United Nations resolutions:

UDHR (1948): Articles 3 - Life, liberty, security, 5 Prohibition of torture, and 9 Prohibition of arbitrary detention.

ICCPR (1966): Articles 7- Non-derogable torture prohibition, 9 Right to prompt judicial review, and 10 Humane treatment in custody.

UNCAT (1984) & OPCAT (2002): Absolute ban on torture under any emergency, prohibition of *refoulement* and mandate for unannounced inspections via NPMs and the SPT.

ICPPED (2006): Complete prohibition of enforced disappearances and requires States to maintain official records of persons deprived of liberty and establishes safeguards intended to prevent and address enforced disappearance.

1951 Refugee Convention & 1967 Protocol: Article 31 -Non-penalization for illegal entry and Article 33 (*Non-refoulement*).

UN Standard Minimum Rules for the Treatment of Prisoners (Nelson Mandela Rules, 2015): Sets benchmarks for prisoner registration, medical care, and inspection standards.

ICESCR (1966): Articles 11 - Adequate standard of living, 12 - Right to health, and 13 Right to education, establishing minimum protections for persons whose basic rights may be affected during detention or displacement.

International Convention on the Elimination of All Forms of Racial Discrimination (ICERD, 1965): Requires States to eliminate racial discrimination in law and practice, including discriminatory treatment in border control, detention, asylum procedures, and access to legal protection.

CASE STUDIES

Case Study 1: Extraordinary Rendition & Post-9/11 CIA Black Site Network in Europe & Asia

Factual Background: After 9/11, the CIA opened a series of secret prison ‘*black sites*’ that were scattered across Poland, Romania, Lithuania, Thailand, Afghanistan, and Morocco. They locked people away, hidden from the outside world. Nobody admitted these places existed, and the people trapped inside weren’t charged with crimes or given any chance to see a lawyer.

Human Rights Violations: Life inside was harsh. The CIA moved suspects around the globe with no legal process with what they called extraordinary rendition. In these sites interrogators went all out, they used to do waterboarding, keeping people awake for days, smashing them into walls, freezing or overheating cells, and forcing prisoners to stay in agonizing positions for hours. These actions broke international law, trampling over the UN Convention Against Torture and the International Covenant on Civil and Political Rights. Hiding people like this and cutting them off from everyone basically meant making them disappear.

Legal Accountability: European courts took notice. They called out countries that worked with the CIA. In decisions like *El-Masri v. Macedonia*, *Al-Nashiri v. Poland*, *Abu Zubaydah v. Lithuania*, and *Al-Nashiri v. Romania*, the European Court of Human Rights said these governments were complicit. They let secret flights land, hosted the prisons, and didn’t bother investigating what happened. The courts found them guilty of helping with these abuses.

Case study 2: Australia's Offshore Processing System on Nauru and Manus Island (Papua New Guinea)

Factual Background: Australia's 'Pacific Solution' and Operation Sovereign Borders in 2013 didn't just tighten the country's migration rules but they set up a system that sent people trying to seek asylum by boat straight to offshore detention centers on Nauru and Los Negros Island in Papua New Guinea. The government made one thing brutally clear: anyone arriving this way would never get permanent residence in Australia.

Human Rights Violations: The reality inside these centers was grim. Reports from groups like the UNHCR and Amnesty International painted a bleak picture: harsh prison-like conditions, endless detention with no clear timeline, alarming medical neglect, violence, spiraling rates of self-harm, and people breaking down mentally. The Australian Border Force Act 2015 also restricted the sharing of information about offshore detention conditions. Laws like the Australian Border Force Act 2015 even threatened to jail staff which included doctors, nurses, anyone even if they spoke publicly about what was happening.

Judicial Rulings & Legacy: In 2016, the Supreme Court of Papua New Guinea stepped in. The court ruled the Manus Island center was illegal and broke people's basic rights to liberty. They ordered it shut down, and by 2017, it was officially closed. But the blueprint for offshore migration camps was out in the world, leaving behind a legal and political legacy that other countries could point to or even copy.

QARMA – QUESTIONS A RESOLUTION MUST ANSWER

1. How can international law clarify and enforce the concept of ‘extraterritorial jurisdiction’ to ensure sovereign states remain legally accountable for human rights violations committed in externalized border enclaves and foreign processing centers?
2. How can the UNHRC help ensure that the SPT and UN experts can access detention sites, military facilities, and transit centres independently and on time?
3. In what ways can the UNHRC motivate State Parties to ratify and fully implement the Optional Protocol to UNCAT (OPCAT) and establish robust, independent National Preventive Mechanisms (NPMs)?
4. What legal frameworks should be constructed to prevent states from circumventing the customary international law principle of non-refoulement through maritime pull-backs, proxy interception, and bilateral third-country disembarkation agreements?
5. How can international accounting and judicial mechanisms hold private military and security companies (PMSCs) and commercial defense contractors criminally liable for human rights abuses committed in offshored or privatized detention centers?
6. What standardized international protocols must be created to enforce centralized, publicly accessible digital registries of all detained individuals to prevent unacknowledged custody and enforced disappearances?
7. How can the international community address state invocation of "state secrecy doctrines" and national security exemptions that block domestic judicial oversight and international investigations into extrajudicial black sites?
8. What structural economic support, capacity building measures and technical assistance should be provided to transit and host nations to prevent them from becoming overburdened legal grey zones for

externalized border management?

9. How can UN bodies effectively investigate and dismantle unofficial custodial sites operated by non-state armed militias, warlords, or proxy security forces in fragile and post conflict states?
 10. What legal remedies, international financial compensation funds, and rehabilitation frameworks should be instituted for victims of unacknowledged secret detention and extraordinary rendition?
 11. How can technology, including satellite imagery, independent whistleblower reporting channels, and humanitarian maritime tracking, be utilized by the UN to monitor unacknowledged custodial centers without infringing upon state sovereignty?
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FURTHER READINGS

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